

Vibrate to save accidents

A former Segway engineer has created a system that warns drivers of dangers by using vibrations in their seats

“Who All Can complain in a Consumer Court?”

Anu, a Delhi based software professional received a latest high end cellphone (of a reputed brand) as a birthday gift from her parents based in Mumbai. Three months later, the device started having software and functional problems. The problem persisted even after being repaired at the service centre. Finally, the service centre indicated that the mobile set had some inherent manufacturing defect. Understandably, she felt cheated and disappointed as it was of emotional value being a gift from her parents. She wanted to take action, but had no idea how to go about it.

She did not want to bother her parents and at the same time wanted to take action against the erring company. She thought it wasn't possible for her to file a complaint with the consumer forum as the device was billed in her mother's name. When she posted her query on an online forum, she realised she could file a complaint with the Consumer Forum although she's not direct buyer of the said product.

The “word ‘consumer’ is a comprehensive expression. It extends from a person who buys any commodity to consume either as eatable or otherwise from a shop, business house, corporation, store, fair price shop to use of private or public services.” The first part of the definition of ‘consumer’ deals with goods, while the second part pertains to services. For instance, it's not only buyer, but even those who use the goods who are beneficiaries of services with approval of the person who purchased the goods or who hired the services is included in it.

There are occasions when many of us receive, as well as gift others products that are purchased. We come across problems and service deficiencies, but feel cheated to have defective

goods or devices and shy or hesitate to ask the person (purchaser) to tell about the problems or go ahead with any legal recourse. At the same time, we fail to appreciate that there is no need to bother the person who purchased the product for you. The Consumer Protection Act, 1986 secures the rights of people who are users and beneficiaries. For the purpose of the Consumer Protection Act the word “consumer” has been defined separately for “goods” (for example a mobile hand set of NOKIA, LG etc.) and “services” (for example of Vodafone, Airtel, etc.).

For the purpose of “goods”, a consumer means a person who buys or agrees to buy goods for a consideration that has been paid or promised or partly paid and partly promised or under any system of deferred payment (where things are taken on EMI). It includes any user of such goods other than the person who actually purchases goods and such use is made with the approval of the purchaser.

If Anu was also gifted a SIM card along with the mobile device, she could have taken action against the service provider as well being a consumer. The Consumer Protection Act is aimed at protecting the interests of a consumer as understood in commercial sense of the term as ‘purchaser of goods’ and in larger sense ‘user of services’.

In India, the Consumer Protection Act, 1986 also differentiates a consumer as consuming a goods or service either for his personal domestic use or to earn his livelihood. Any person, entity or organization purchasing a commodity for commercial reasons is exempted from any benefits of this act. However, if



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the buyer of goods uses them himself, i.e., by self-employment, for earning his livelihood, it would not be treated as a “commercial purpose” and he does not cease to be a consumer for the purposes of the Act. Suppose a person purchases computers to run an internet café for earning his livelihood would be a consumer with in the meaning envisaged under the Consumer Protection Act.

Conclusively, when business people and legalists talk of consumers they are talking about person as consumer, an aggregated commodity item with little individuality other than that expressed in the buy/not-buy decision. There is increasing backlash from the public over use of the label “consumer” rather than “customer”. The National Commission for Consumer Redressal and various State Consumer Commissions have held that the expressions ‘consumer’ and ‘complainant’ gather within themselves and includes the legal representatives of the deceased consumer. Do not feel cheated and there is no need to bother the person who got the goods and availed services for you. You are a consumer and you can be the complainant to raise your rights and file consumer complainant with the consumer forums. 

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